UNITED STATES DISTRICT COURT
CENTRAL DISTRICT OF CALIFORNIA

CIVIL MINUTES – GENERAL

Case No.: 8:22-cv-01727-FWS-JDE Date: August 3, 2023
Title: Miguel Lerma, Jr. v. Amazon.com Services, LLC *et al.*

Present: **HONORABLE FRED W. SLAUGHTER, UNITED STATES DISTRICT JUDGE**

Melissa H. Kunig	N/A
Deputy Clerk	Court Reporter
Attorneys Present for Plaintiff:	Attorneys Present for Defendants:
Not Present	Not Present

PROCEEDINGS: ORDER TO SHOW CAUSE WHY ACTION SHOULD NOT BE DISMISSED FOR LACK OF PROSECUTION

On November 15, 2022, Plaintiff Miguel Lerma ("Plaintiff") filed a First Amended Complaint ("FAC"). (Dkt. 20.) On December 15, 2022, Defendants Accurate Background, Inc., Amazon Logistics, Inc., and Amazon.com Services, LLC (collectively, "Defendants") moved to dismiss the FAC. (Dkts. 23, 24.) On May 26, 2023, the court granted Defendants' motions and ordered Plaintiff to file a Second Amended Complaint, if any, within thirty days, or by June 26, 2023. (Dkt. 36.) As of the date of this Order, Plaintiff has not filed any amended pleading, leaving it unclear which claims Plaintiff intends to pursue. (*See generally*, Dkt.)

Accordingly, the court hereby **ORDERS** Plaintiff to show cause in writing no later than **August 18, 2023**, why this action should not be dismissed for lack of prosecution. Plaintiff may discharge the Order to Show Cause by filing an amended complaint that complies with the court's May 26, 2023, Order. Failure to adequately comply with the court's order may result in dismissal. *See* Fed. R. Civ. P. 41(b); *Link v. Wabash R.R. Co*., 370 U.S. 626, 629 (1962) ("The authority of a federal trial court to dismiss a plaintiff's action with prejudice because of his failure to prosecute cannot seriously be doubted."); *Hells Canyon Pres. Council v. U.S. Forest Serv*., 403 F.3d 683, 689 (9th Cir. 2005) ("[C]ourts may dismiss under Rule 41(b) sua sponte, at least under certain circumstances."); *Ash v. Cvetkov*, 739 F.2d 493, 496 (9th Cir. 1984) ("It is within the inherent power of the court to sua sponte dismiss a case for lack of prosecution.").

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IT IS SO ORDERED.

Initials of Deputy Clerk: mku